

Law of Divorce

وَالْمُطَلَّاتُ يَتَرَبَّصْنَ بِأَنْفُسِهِنَّ ثَلَاثَةَ قُرُوءٍ وَلَا يَحِلُّ لَهُنَّ أَنْ يَكْتُمْنَ مَا خَلَقَ اللَّهُ فِي أَرْحَامِهِنَّ إِنْ كُنَّ يُؤْمِنْنَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ وَبُعُولَتُهُنَّ أَحَقُّ بِرَدِّهِنَّ فِي ذَلِكَ إِنْ أَرَادُوا إِصْلَاحًا وَلَهُنَّ مِثْلُ الَّذِي عَلَيْهِنَّ بِالْمَعْرُوفِ وَلِلرِّجَالِ عَلَيْهِنَّ دَرَجَةٌ وَاللَّهُ عَزِيزٌ حَكِيمٌ

“Divorced women must wait, keeping themselves from men for three menstrual courses. It is unlawful for them, if they believe in Allah and the Last Day, to hide what He has created in their wombs: in which case their husband would do well to take them back, should they desire reconciliation. Women shall with justice have rights similar to those exercised against them, although men have an edge above women (being husband). Allah is Mighty and Wise. Divorce (after which the men may reconcile during the waiting period) may be pronounced twice, and then a woman must be retained in honor or allowed to go with kindness. It is unlawful for husbands to take that from them anything they have given them, unless both fear that they may not be able to keep within bounds set by Allah; in which case it shall be no offence for either of them if the wife ransom herself. These are the bounds set by Allah; do not transgress them. Those that transgress the bounds of Allah are wrongdoers. If a man divorces (for the third time) his wife, he cannot remarry her until she has wedded another man and been divorced by him; in which case it shall be no offence for either of them to return to the other, if they think that they can keep within the limits set by Allah. Such are the bounds of Allah. He makes them plain to men of understanding (who know the consequences of transgressing His bounds). When you have divorced your wives and they have reached the end of their waiting period, either retain them in honor or let them go with kindness. But you shall not retain them in order to harm them in honor or to wrong them. Whoever does this, wrongs his soul.”(2: 228-231).

يَا أَيُّهَا النَّبِيُّ إِذَا طَلَّقْتُمُ النِّسَاءَ فَطَلِّقُوهُنَّ لِعَدَّتِهِنَّ وَأَحْصُوا الْعِدَّةَ وَاتَّقُوا اللَّهَ رَبَّكُمْ لَا تُخْرِجُوهُنَّ مِنْ بُيُوتِهِنَّ وَلَا يَخْرُجْنَ إِلَّا أَنْ يَأْتِيَنَّ بِفَاحِشَةٍ مُبَيَّنَةٍ وَتِلْكَ حُدُودُ اللَّهِ وَمَنْ يَتَعَدَّ حُدُودَ اللَّهِ فَقَدْ ظَلَمَ نَفْسَهُ لَا تَدْرِي لَعَلَّ اللَّهَ يُحْدِثُ بَعْدَ ذَلِكَ أَمْرًا

فَإِذَا بَلَغْنَ أَجَلَهُنَّ فَأَمْسِكُوهُنَّ بِمَعْرُوفٍ أَوْ فَارِقُوهُنَّ بِمَعْرُوفٍ وَأَشْهَدُوا ذَوَى عَدْلٍ مِّنكُمْ وَأَقِيمُوا الشَّهَادَةَ لِلَّهِ ذَلِكَ يُوعَظُ بِهِ مَنْ كَانَ يُؤْمِنُ بِاللَّهِ وَالْيَوْمِ الْآخِرِ وَمَنْ يَتَّقِ اللَّهَ يَجْعَلْ لَهُ مَخْرَجًا

“If you (believers) divorce your wives, divorce them at (the end) of their waiting period. Complete their waiting period and have fear of Allah, your Lord. Do not expel them from their homes or let them go away unless they commit a proven immorality (adultery). Such are the bounds set by Allah; he that transgresses Allah’s bounds wrongs his own soul. You never know after that Allah may bring to pass some new events”. (Al-Talaq-65: 1).

Procedure of Divorce:

1. Only husband is entitled to give divorce.
2. 2 arbitrators one each from the couple should be appointed for reconciliation.
3. In case reconciliation fails, divorce should not be given while is in menstrual period wife.
4. The right of divorce is given just for two times.
5. She will wait for three menstrual cycles.
6. In case the husband wants to retain her within the period then they can become husband and wife once again.
7. During the *Iddat* period, wife must not be turned out of the house of her house.
8. Husband will be responsible for her living expenses during her *Iddat* period.
9. In case the husband does not retain her during the period then she must be allowed to go in a dignified and respectable manner.
10. Whatever was given to wife should not be taken back.
11. In case the husband retains her then they can remarry as usual.
12. After giving divorce for third time, they cannot remarry until the woman marries some other person.
13. Right Concept of *Halala*
14. Concept of *Khula*

Ila (إيلاء)

لَّذِينَ يُؤْلُونَ مِنْ نِسَائِهِمْ تَرِيصُ أَرْبَعَةِ أَشْهُرٍ فَإِنْ فَاءُوا فَإِنَّ اللَّهَ غَفُورٌ رَحِيمٌ. وَإِنْ عَزَمُوا الطَّلَاقَ فَإِنَّ اللَّهَ سَمِيعٌ عَلِيمٌ

Those who swear to abstain from their wives must wait four months. If they change their mind, Allah is Forgiving and Ever-Merciful; but if they decide to divorce them, [they should know that] He hears all and knows all. (2:226-227)

Penalty of Ila:

لَا يُؤَاخِذُكُمُ اللَّهُ بِاللَّعْنَةِ فِيْ أَيْمَانِكُمْ وَلَكِنْ يُؤَاخِذُكُمْ بِمَا عَقَّدْتُمُ الْأَيْمَانَ فَكَفَّارَتُهُ إِطْعَامُ عَشْرَةِ مَسَاكِينَ مِنْ أَوْسَطِ مَا تُطْعَمُونَ أَهْلِيكُمْ أَوْ كِسْوَتُهُمْ أَوْ تَحْرِيرُ رَقَبَةٍ فَمَنْ لَمْ يَجِدْ فَصِيَامُ ثَلَاثَةِ أَيَّامٍ ذَلِكَ كَفَّارَةُ أَيْمَانِكُمْ إِذَا حَلَفْتُمْ وَاحْفَظُوا أَيْمَانَكُمْ كَذَلِكَ يُبَيِّنُ اللَّهُ لَكُمْ آيَاتِهِ لَعَلَّكُمْ تَشْكُرُونَ

Allah will not hold you accountable for your inadvertent oaths, but He will definitely hold you accountable for oaths you swear with solemn intention. So if such an oath is broken, its atonement is the feeding of ten needy persons of a standard with which you normally feed your own families or the clothing of ten needy people or the liberation of one slave. But whosoever cannot afford these should fast for three days. This is the atonement for the oaths when you have sworn. And be true to that which you have sworn. Thus Allah explains to you His verses that you may be grateful. (5:89)

Zihar (ظهار)

الَّذِينَ يُظَاهِرُونَ مِنْكُمْ مَنْ نَسَاهُمْ مَا هُنَّ أُمَّهَاتُهُمْ إِلَّا اللَّائِي وَلَدْنَهُمْ وَإِنَّهُمْ لَيَقُولُونَ مُنْكَرًا
مِّنَ الْقَوْلِ وَزُورًا وَإِنَّ اللَّهَ لَعَفُوفٌ غَفُورٌ

Those among you who commit *zihar* with their wives, they [—these wives—] cannot become their mothers: none can be their mothers except those who gave birth to them. And in fact such people say something very immoral and false. And truly Allah is Forgiving and Merciful.

Penalty of Zihar:

وَالَّذِينَ يُظَاهِرُونَ مِنْ نِّسَائِهِمْ ثُمَّ يَعُودُونَ لِمَا قَالُوا فَتَحْرِيرُ رَقَبَةٍ مِّن قَبْلِ أَنْ يَتَمَاسَا ذَلِكَم تَوْعَظُونَ بِهِ
وَاللَّهُ بِمَا تَعْمَلُونَ خَبِيرٌ فَمَنْ لَّمْ يَجِدْ فَصِيَامُ شَهْرَيْنِ مُتَتَابِعَيْنِ مِن قَبْلِ أَنْ يَتَمَاسَا فَمَنْ لَّمْ يَسْتَطِعْ فَاِطْعَامُ
سِتِّينَ مِسْكِينًا ذَلِكَ لِيُؤْمِنُوا بِاللَّهِ وَرَسُولِهِ وَتِلْكَ حُدُودُ اللَّهِ وَلِلْكَافِرِينَ عَذَابٌ أَلِيمٌ

And [in this matter the directive is that] those who do *zihar* with their wives then wish to go back on the words they uttered – then a slave should be liberated before they touch each other. Thus are you admonished to do and Allah is well-acquainted with all that you do. And if a slave is not available to a person, he should fast for two months consecutively before they touch each other. And if he is unable to do this even, he should feed sixty indigent ones. This is because you may show your faith in Allah and His Messenger. Those are limits set by Allah; [only the rejecters of Allah and His Messenger cross them]. And there is a grievous punishment for such rejecters. (Al Mujadalah:2-4)